

1.

CASE #	CASE NAME	HEARING NAME
CVPS2304017	MIRAMORE, LLC VS TYLER	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND PRODUCTION OF DOCUMENTS BY AC PALM DESERT CORPORATION, JOHN WHITE

Tentative Ruling: Matter taken off calendar by moving party per declaration filed July 14, 2026 as result of counsel meeting and conferring and resolving the instant disputed discovery issue(s).

2.

CASE #	CASE NAME	HEARING NAME
CVPS2500832	MELENDREZ VS UNITED GROUND EXPRESS, INC.	MOTION TO COMPEL DEFENDANT UNITED GROUND EXPRESS, INC. TO PROVIDE FURTHER RESPONSES, WITHOUT OBJECTION, TO REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE) BY ANGELIQUE MELENDREZ

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is an employment law discrimination action filed February 5, 2025 by Plaintiff Angelique Melendrez against Defendants United Ground Express, Inc., United Airlines, Inc., Donald Miller and Kevin Tomas, which alleges 10 causes of action for 1) discrimination in violation of FEHA, 2) hostile work environment, 3) retaliation in violation of FEHA, 4) failure to provide reasonable accommodation, 5) failure to engage in the interactive process, 6) failure to prevent discrimination, harassment, and retaliation, 7) wrongful termination in violation of public policy, 8) IIED, 9) whistleblower retaliation in violation of Labor Code section 1102.5, and 10) negligent hiring, supervision, and retention.

Plaintiff Melendrez now moves the court to compel Defendant United Ground Express, Inc. to provide further responses to Requests for Production (Set One) numbers 41, 48, 69, 70, 75 and 80, without objection. Melendrez asserts that the responses provided were incomplete, evasive and non-code compliant.

In opposition, United Ground Express asserts that the motion is untimely, the memorandum is confusing as the memorandum only refers to a single deficient response to Form Interrogatory 201.1(d) and subsection D entitled discovery sought is blank. Further, United asserts that Plaintiff only vaguely asserts that the responses are incomplete, evasive and insufficient without ever stating why. In addition, United asserts its objections and responses were justified and appropriate and therefore the motion should be denied and Defendant awarded sanctions of \$4,329.50 as the prevailing party.

Motion to Compel Further Response(s)

Timeliness of the Motion

On March 28, 2025, Plaintiff served Defendant with Requests for Production (Set One), which had a total of 107 document requests. Defendant served Plaintiff with its responses to Requests for Production (Set One) on June 24, 2025. Defendant's counsel's declaration declares that on September 24, 2025, Plaintiff initiated meet-and-confer efforts regarding Defendant's discovery responses and Defendant served supplemental responses on February 6, 2026, but did not supplement Request for Production Nos. 41, 48, 69, 70, 75 or 80.

CCP section 2031.310(b)(3)(c) provides that "[u]nless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (CCP §2031.310(b)(3)(c).) Therefore, without the written agreement of the parties the last day to file this motion was March 23, 2026.

However, on March 16, 2026, the parties did agree to a mutual deadline to bring a Motion to Compel by April 3, 2026, which agreement is verified by attached Exhibit 1 a copy of the correspondence. This motion was not filed until April 21, 2026. Accordingly, the motion is untimely.

An untimely motion to compel further production of documents is jurisdictional in the sense that it renders the court without authority to rule on the motion to compel. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th1403.) Accordingly, the court must deny the motion as untimely as it does not have the authority to rule on the merits of the motion.

Sanctions

Code of Civil Procedure section 2030.300(d) provides that the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories unless it finds the party or attorney acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Defendant requests sanctions against Plaintiff in the amount of \$4,329.50. Had Plaintiff properly met and conferred they likely would have realized the instant motion was futile because of the untimeliness. Sanctions are granted in the reduced, but reasonable amount of \$1,829.50 payable to Defendant by Plaintiff and Plaintiff's counsel jointly and severally within 30 days of this order becoming final.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503770	CANCHOLA VS CANCHOLA	MOTION FOR INTERLOCUTORY JUDGMENT OF PARTITION BY SANTIAGO CANCHOLA

Tentative Ruling: Granted.

Moving party to provide notice pursuant to CCP 1019.5.

This is a partition action filed May 20, 2025 by Plaintiff Santiago Canchola against Defendants Carlos Canchola and all persons claiming an interest in the property. The Complaint alleged three causes of action for 1) partition, 2) accounting, and 3) declaratory relief. The court subsequently